

24AVCV00953 24AVCV00953

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C07%2F07%2F2026

Source SHA-256: 6be3b54af9a713183ed684d119bf85e94c0dc95a6bac44d87b8a955c1802b9ab

Case Number: 24AVCV00953 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JACQUELINE DEL ROCIO ALVARADO,

Plaintiff,

v.

GENERAL MOTORS, LLC; and DOES 1 through 50, inclusive,

Defendant.

Case Number 24AVCV00953

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

The instant Song-Beverly Consumer Warranty Act ("Song Beverly") case arises from alleged nonconformities and defects to warranty in Plaintiff's 2019 Chevrolet Silverado, (hereafter "Vehicle"), which was manufactured and/or distributed by Defendant General Motors, LLC ("GM").

On August 7, 2024, Plaintiff filed their Complaint against GM and Does 1 through 50, alleging five causes of action: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the express warranty; and (5) breach of the implied warranty of merchantability.

On September 12, 2024, GM filed its answer.

On October 10, 2025, Plaintiff filed a notice of conditional settlement of the entire case.

On January 21, 2026, Plaintiff filed a memorandum of costs.

On March 5, 2026, Plaintiff filed the operative motion for attorney's fees.

On June 23, 2026, GM filed an opposition.

On June 29, 2026, Plaintiff filed a reply.

II. Analysis

Standard for Motion for Attorney's Fees – A prevailing party is entitled to recover costs, including attorney's fees, as a matter of right. (See Code Civ. Proc., § 1032, subds. (a)(4), (b); id. at § 1033.5.) Furthermore, attorney fees are allowable as costs when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10).)

A prevailing party in a lawsuit includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code of Civ. Proc., § 1032, subd. (a)(4).)

;

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court . . . must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case. . . ." (Cal. Rules of Court, rule 3.1702(b)(1).) In an unlimited civil case, a notice of appeal must be filed on or before the earliest of 60 days after service of a document entitled "Notice of Entry" of judgment or 180 days after the entry of judgment. (See Cal. Rules of Court, rule 8.104 (a)(1).)

The Song-Beverly Act provides, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Code of Civ. Proc., § 1794(d).)

The party seeking fees and costs “bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.” (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.) In determining a reasonable attorney fee award, a court decides the “reasonable hours spent” on the case and multiplies the number by “the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) The result is called the “lodestar” figure. (Id.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys’ experience and reputation, and other circumstances. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.)

Discussion

Plaintiff is the Prevailing Party in this Action & the Attorney’s Fees Provision Applies to this Action –

Here, on October 10, 2025, the parties reached a settlement agreement, whereby GM agreed to pay Plaintiff’s attorney fees, expenses, and costs “that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM will agree that Plaintiff is the prevailing party.” (Demery Decl., ¶ 10, Exh. 2, ¶¶ 2-3.) GM does not dispute Plaintiff’s status or the application of the provision here. Thus, the Court finds that, per the terms of the settlement agreement, Plaintiff is the prevailing party. In addition, the Court finds that Plaintiff is entitled to an award of reasonable attorney fees pursuant to the settlement agreement.

Calculation of the Fee Award – The party seeking fees and costs “bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.” (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.) In determining a reasonable attorney fee award, a court decides the “reasonable hours spent” on the case and multiplies the number by “the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) The result is called the “lodestar” figure. (Id.)

Plaintiff’s motion seeks a total of \$67,594.87 in fees and costs. Breaking this down, this consists of: (1) \$42,640.50 in lodestar fees for 109.8 hours of purported work; (2) a 1.5 times multiplier of \$21,320.25; (3); \$2,200.00 in “anticipated” fees; and (4) \$1,434.12 for costs. (Gruszecki Decl. ¶ 12.)

i. Hourly Rate

Reasonable attorneys’ fees are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys’ experience and reputation, and other circumstances. (Id.)

Here, Plaintiff seeks to recover a total of \$67,594.87 (including a 1.5 times multiplier) in attorney fees, costs, and expenses for work it claims was performed by 7 attorneys: (1) Carey Wood - \$560.00/hour; (2) Destinae Demery - \$440.00/hour; (3) Vanessa Oliva - \$540.00/hour; (4) Iraida Gonzalez - \$480.00/hour; (5) Laura Schwartz - \$450.00/hour; (6) Shayla White - \$430.00/hour; and (7) Bobby C. Walker - \$440.00/hour. (Mot., at p. 13.) Plaintiff also seeks to recover for work performed by paralegals at a rate of \$215/hour. (Id.) In support of the billing rates, Destinae Demery declared their rates accord with community standards, and the motion cited the finding in Goglin v. BMW of North America (2016) 4 Cal.App.5th 462, 473, affirming that a \$575 hourly fee for lead counsel on a lemon law case was reasonable. (Demery Decl., ¶¶ 12-18.)

GM does not challenge the reasonableness of the hourly fee rates.

As the rates are not contested, the Court will accept their reasonableness for the purposes of the present motion. This expressly is not an independent determination by the Court of the reasonableness of the rates, and this Order should not be relied on in other litigations as evidence that a court made an independent finding that the hourly rates listed are reasonable.

ii. Reasonableness of Time Spent

GM argues that the following reductions are necessary:

- Templated Discovery Requests, ESI Letter & PMQ Deposition Notice - 2.7/\$1,215.00
- Templated Discovery Responses - 3.0/\$1,350.00
- Templated Meet and Confer Correspondence 3.6/\$1,620.00
- Templated Motion to Compel the Deposition of GM's PMQ 12.9/\$5,779.00
- Templated Fee Motion - 1.2/\$528.00
- Pre-Litigation Work - 3.3/\$872.00
- Administrative and Clerical Time - 25.4/\$5,461.00
- Clerical & Administrative Tasks Billed at Attorney Rates - 8.7/\$4,278.00
- TOTAL: 60.8/\$21,103.00

Total reduction sought in lodestar fees amounts to 60.8 hours, in the amount of \$21,103.00 The Court has reviewed the billing records submitted and finds that in some instances the attorneys billed unreasonable hours for certain work,

As to GM's claims regarding the templated discovery requests and responses, meet and confer correspondences, and motions:

1. While the Court does not find the discovery requests work conducted by Laura Schwartz on September 3, 5, and 6 to be excessive, the court does find Laura Schwartz's and Kenneth Lima's discovery request entries on September 12 and 13 to be duplicative of previously billed work and reduces the 0.2 hours (\$90) spent by Schwartz and the 0.7 hours (\$150.50) spent by Lima. (Total: \$240.50)

2. The Court does not find that Counsel excessively billed for the discovery responses on October 17 & 28, and November 12, 2024, because each discovery request was billed for less than an hour.

3. The Court finds that counsel unreasonably billed 5.1 hours for meet and confer efforts throughout the months of October and November 2024 considering the relative simplicity and similarity of meet and confer emails. The Court reduces by 3.6 hours (\$1,620.00)

4. The Court finds that counsel unreasonably billed for work as to the motion to compel the deposition of GM's PMQ. First, Lauren Schwartz excessively billed 2.4 hours for drafting a reply in support of the motion, so the Court reduces the hours by 1.4 (\$630.00). Second, the Court finds Kenneth Lima's billing for reviewing and finalizing the reply to be duplicative of work billed by Lauren Schwartz and reduces the 0.2 hours billed (\$43.00). Third, the Court finds Lauren Schwartz's billing for Review ROA in anticipation of motion to compel PMQ hearing on March 17, 2025, to be duplicative of Lima's billed work on the same day and reduces the 0.2 hours billed (\$90). Fourth, the Court finds Destinae Demery's billed work for analyzing and reviewing Plaintiff's MTC PMQ depo to be duplicative of work billed by other attorneys and reduces the 1.8 hours (\$792). Lastly, the Court finds Destinae Demery's 1.8 hours for drafting demand for expert exchange and depo notices and subpoenas on August 14, 2025 to be excessive and reduces by 0.8 hours (\$352). (Total: \$1,907)

5. The Court does not find 2.7 hours for auditing billing records and accounting for this motion plus drafting this motion to be excessive. However, the Court finds 5.2 hours for reviewing the opposition and drafting a reply to be excessive and reduces by 3.2 hours (\$1,408).

6. The Court does not find GM's argument that work related to the case, even if done prior to the complaint being filed, is unrecoverable. However, the Court does find the 0.2 hours billed by Jonathan Avalos on July 11, 2024, for a voicemail and email requesting Plaintiff to call back to be unreasonable as a recoverable cost (\$43).

7. The Court does not find GM's argument regarding administrative and clerical time billed by paralegals to be persuasive because GM does not provide support or evidence that serving, receipt and reviewing, scheduling, and calendaring are purely clerical tasks rather than tasks usually associated with and conducted by paralegals in support of litigation. GM also argues in broad strokes rather than pinpointing specific entries for the Court. The Court has reduced duplicative hours above for paralegal work.

8. The Court does not find GM's argument regarding alleged clerical and administrative tasks billed at attorney rates persuasive, because GM makes general allegations without providing specific evidence or entries supporting its claims. The Court cannot determine which entries GM is referring to due to the lack of information.

The Court calculates the total amount of these reductions to be \$5,218.5. Subtracting this amount from the fees sought of \$44,840.50 (\$42,640.50 in incurred fees and \$2,200.00 in "anticipated" fees) amounts to fees of \$39,622.

GM also requests a 10% reduction of Counsel's time, or a reduction of \$2,153.75, because 15 individuals billed on this matter without an explanation or justification for such a breadth of timekeepers in a common Song-Beverly Act case. (Opp., at p. 11.) Plaintiff does not address this argument in their reply. The Court understands that inefficiencies occur through the use of multiple timekeepers, and the Court has attempted to address some of those inefficiencies above. Fifteen timekeepers for this matter is excessive, however. The Court further reduces the fees by 5% to account for these inefficiencies, and to account for block-billing of entries.. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) This results in an additional discount of \$1981, for fees of \$37,641.

GM also requests a reduction of \$931.03 in costs on the grounds that the costs were not required, and no jury convened as to the CMC and notice of posting jury fees. However, GM has not filed a motion to strike or to tax costs. (Cal. rule 3.1700(b).) Thus, Plaintiff's request for costs is not reduced.

iii. Multiplier

The Court agrees with GM that a “multiplier” is unjustified here. This was an ordinary lemon law case that did not require extraordinary legal skill, did not get past the earliest stages of discovery, and was resolved in a little over a year since the initial complaint was filed. Plaintiff argues a multiplier is justified because counsel obtained an “excellent” outcome, of the “contingent risk,” the complexity of the case, and counsel’s skill in litigating this matter, but fails to persuasively satisfy the elements required for an enhancement. Thus, under the circumstances, the Court finds a multiplier is not justified.

Therefore, Plaintiff is entitled to recover attorney fees in the reduced amount of \$37,872, plus \$1,434.12 in costs.

III. Conclusion

Plaintiff’s Motion for Attorney Fees is GRANTED in the reduced amount of \$37,461, plus \$1,434.12 in costs.